

HOUSE BILL 2051

By Camper

AN ACT to amend Tennessee Code Annotated, Title 47,
Chapter 18 and Title 50, relative to the use of self-
service checkout.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 47, Chapter 18, is amended by adding
the following as a new part:

47-18-5901. Short title.

This part is known and may be cited as "The Tennessee Safe Stores and Staffed
Stores Act."

47-18-5902. Definitions.

As used in this part:

(1) "Customer" means an individual who buys consumer goods from a
drug retail establishment or food retail establishment;

(2) "Drug retail establishment" means a retail store that sells a variety of
prescription and nonprescription medicines and miscellaneous items, including
drugs, pharmaceuticals, sundries, fresh produce, meats, poultry, fish, deli
products, dairy products, canned foods, dry foods, beverages, prepared foods,
and other merchandise;

(3) "Employee":

(A) Means an individual employed by and on the direct payroll of
a drug retail establishment or food retail establishment; and

(B) Does not include independent contractors, workers hired through a third-party agency, managers, supervisors, or confidential employees;

(4) "Food retail establishment" means a retail store that is:

(A) Over fifteen thousand square feet (15,000 sq. ft.) in size and sells primarily household foodstuff for offsite consumption, including fresh produce, meats, poultry, fish, deli products, dairy products, canned foods, dry foods, beverages, baked foods, or prepared foods; or

(B) Over eighty-five thousand square feet (85,000 sq. ft.) and with ten percent (10%) or more of the establishment's sales floor area dedicated to the sale of foodstuff for offsite consumption, including the sale of fresh produce, meats, poultry, fish, deli products, dairy products, canned foods, dry foods, beverages, baked foods, or prepared foods;

(5) "Self-service checkout" means the automated processes that enable a customer to scan, bag, and pay for the customer's purchases without human assistance, including fixed self-checkout, scan-and-go self-checkout, or mobile self-checkout;

(6) "Self-service checkout station" means a station at a fixed location within a drug retail establishment or food retail establishment at which a customer can engage in a self-service checkout for the customer's purchases; and

(7) "Staffed checkout station" means a station that is not a self-service checkout and at which an employee provides human assistance to a customer for scanning, bagging, or accepting payment for the customer's purchases.

47-18-5903. Requirements of establishments utilizing self-checkout options.

(a) A drug retail establishment or food retail establishment that provides self-service checkout options shall:

(1) Provide to a customer at least one (1) staffed checkout station for every four (4) self-service checkout stations; a staffed checkout station must be available during the times that a self-service checkout option is available to customers;

(2) Establish, implement, and advertise limits to self-service checkout to purchases of no more than fifteen (15) items;

(3) Establish workforce policies that prohibit a customer from using a self-service checkout station to purchase an item:

(A) That requires a customer to provide a form of identification, including an alcohol or tobacco product; or

(B) Subject to special theft-deterrent measures that are affixed to the item, including electronic article surveillance, ink, or other tags, or an item placed in a locked cabinet, that require the intervention of an employee to remove the item before purchase;

(4) Notify the public by prominently posting signage in a location accessible to customers, including a link or quick response (QR) code that can be scanned to access a website providing a summary of the public's rights under this part, including enforcement options available to the public;

(5) Locate self-service checkout stations to enable observation and surveillance from both employees of drug retail establishments and food retail establishments and local law enforcement;

(6) Assign at least one (1) employee to monitor the self-service checkout operation at all times that the self-service checkout is in operation during business hours; and

(7) Ensure that an assigned employee does not have other work responsibilities that would interfere with the employee's ability to maintain direct visual inspection and surveillance of the self-service checkout operations.

(b) Drug retail establishments or food retail establishments operating two (2) or more self-service checkout stations shall:

(1) Maintain a staffing ratio of at least one (1) employee for every three (3) self-service checkout stations; and

(2) Implement the standard required by subdivision (b)(1) in a manner that takes into account operational and logistical feasibility.

47-18-5904. Civil action — Penalties.

(a) A customer or employee of a drug retail establishment or food retail establishment may bring a civil action in a court of competent jurisdiction against a drug retail establishment or food retail establishment for violating this part;

(b) If a customer or employee of a drug retail establishment or food retail establishment prevails in an action brought under subsection (a), the court may award:

(1) A civil penalty of not more than one hundred dollars (\$100) per employee of the drug retail establishment or food retail establishment for each violation;

(2) An additional civil penalty of one hundred dollars (\$100) per employee for each day the violation remains uncured, not to exceed one thousand dollars (\$1,000) per employee per day; and

(3) Reasonable court costs and attorneys' fees.

47-18-5905. Retaliation prohibited.

A drug retail establishment or food retail establishment shall not terminate, reduce in compensation, or otherwise discriminate against an employee in conditions of employment for seeking to enforce the employee's rights, participating in proceedings, or opposing a practice proscribed by this part, or for otherwise asserting rights under this part.

SECTION 2. If any provision of this act or its application to any person or circumstance is held invalid, then the invalidity does not affect other provisions or applications of the act that can be given effect without the invalid provision or application, and to that end, the provisions of this act are severable.

SECTION 3. The headings in this act are for reference purposes only and do not constitute a part of the law enacted by this act. However, the Tennessee Code Commission is requested to include the headings in any compilation or publication containing this act.

SECTION 4. This act takes effect January 1, 2027, the public welfare requiring it, and applies to conduct occurring on or after that date.